

CUI
JUSTIFICATION FOR OTHER THAN FULL AND OPEN COMPETITION
SOLICITATION SPE7L125R0028

☒ **ORIGINAL**

☐ **ADDENDUM (attach copy of original J&A for add-ons or revisions)**

1. The Defense Logistics Agency, DLA Land and Maritime, is the contracting activity.
2. The action being approved is the acquisition of supplies on other than a full and open competition basis.
3. The supplies required to meet the using activity's needs are described as follows:

BRIEF DESCRIPTION	NSN/P/N	QUANTITY	EST. VALUE	AMSC
Cover, Vehicular Comp	2590-017074266	46 Each	\$ [REDACTED]	3/D

Identify end item, weapon system, or class of item: M1078A2, TRK CGO M1078A2, TRUCK CARGO 2

The solicitation is for a DLA Direct Requirement, PR 7009055272, WSIC: Y, WSDC: X3A

ESTIMATED BASE VALUE: Base quantity of 46 each: \$ [REDACTED]

4. The statutory authority permitting other than full and open competition is:
☒ 10 U.S.C. 3204(a)(1) - Available from only one or a limited number of sources.

5. If restricted to the only source(s) of supply, include source(s) and CAGE code:
MCCLARIN PLASTICS, LLC (0C8U3) P/N 218-0002E-1-C is uniquely qualified because they are the only known source with the data or rights to the data necessary to manufacture this item.

The use of the authority cited below:

☒ AMC 3. Acquire, for the second or subsequent time, directly from the manufacturer.

The use of the authority cited is based on:

☒ *AMSC D*. The data needed to acquire this part competitively is not physically available, it cannot be obtained economically, nor is it possible to draft adequate specifications or any other adequate, economical description of the material for a competitive solicitation. AMCS 3, 4, or 5 are valid.

Controlled by: DLA Land and Maritime
Controlled by: FLSC
CUI Category: PROCURE/SSI
Distribution/Dissemination Control: FED ONLY
POC: [REDACTED]

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Product Specialist, [REDACTED] certified the technical certification on 12-17-24:

- This item is an AMC/AMSC of 3/D. McClarin Plastics LLC. 0C8U3 is the only source capable of making this item. The government DOES NOT HAVE the data or drawings for full and open competition, the approved source is the only source known to possess the required technical data.

6. Efforts to ensure that offers are solicited from as many sources as practicable are:

[X] The acquisition will be synopsisized for 15 days on SAM.gov prior to the solicitation opening.

7. I hereby determine that the anticipated cost to the Government will be fair and reasonable.

- A price analysis will be conducted using historical pricing, the Producer Price Index (PPI), and learning curve analysis. Cost or pricing data in accordance with FAR 15.403-4 will be requested if the offeror's proposal exceeds the \$2M threshold for obtaining cost data, however, it is anticipated that this procurement will not exceed that threshold. Offerors may be requested to submit information other than cost or pricing data for determining price reasonableness. Based on the above techniques, the Contracting Officer anticipates that the cost to the Government will be fair and reasonable.

8. Market Research/Efforts to Obtain Competition:

- Procurement history:

Smart Number (PIIN)	Source Type	TIC	Vendor CAGE Code	Vendor Name	Quantity	Unit	Net Price	Total unit Cost	Curr	Per	Award Date	Incoterms	Prc Reas	SAP PO No.	Wgt Avg	Surplus Material
SPE7L124C0044	A		0C8U3	MCCLARIN PLASTICS, LLC	56.000	EA	25100.00000	\$ 1,405,600.00	USD	1	8/8/2024		BG	6510744265	X	N
SPE7L124C0015P00002	B		0C8U3	MCCLARIN PLASTICS, LLC	40.000	EA	23850.00000	\$ 954,000.00	USD	1	1/24/2024	1	BG	6510366682		N
SPE7L323V7235	B		1N8T8	JGILS, LLC	1.000	EA	25954.18000	\$ 25,954.18	USD	1	7/31/2023	1	XG	6510047240		N
SPCL7L323V6559	D		1N8T8	JGILS, LLC	4.000	EA	25938.07000	\$ 103,755.48	USD	1	7/3/2023	1	XD	6509991030		N

- A sources sought was posted on SAM.gov on 12-12-24 and was posted for 5 business days (closed 12-19-24). There were no responses from the sources sought posting.
- Market Survey was conducted on 12-12-24.
Total number of vendors contacted: 2
Names of vendors contacted and responding:
 - McClarin Plastics LLC (0C8U3)
 - Responded 12-16-24 and provided a market survey.
 - JGILS LLC (1N8T8)
 - Responded 12-19-24 and provided a market survey.

Techniques used to conduct survey: E-mail correspondence.

Types of information requested:

- Business size.
- Manufacturer or dealer.
- Commerciality.
- Price breaks.
- Minimum order quantity.
- Estimated delivery.

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Summary of information received:

- Business size: McClarin and JGILS both stated on the market survey's that they were small businesses.
- Manufacturer or dealer: McClarin is the manufacturer, whereas JGILS is a dealer.
- Commerciality: Both companies stated that the item was not available commercially.
- Price breaks: [REDACTED].
- Minimum order quantity: [REDACTED].
- Estimated delivery: McClarin estimated delivery [REDACTED]. JGILS estimated delivery [REDACTED].

Information received regarding the commerciality of the item(s):

- The market survey provided by the only approved source, McClarin Plastics LLC (0C8U3) states that this item is not commercially available.
- No results were returned on GSA or CID database. Market research did not yield any readily available published catalog price lists, schedules, or other form of commercial pricing that are regularly maintained and updated by a manufacturer or vendor, and that are available to the general public for inspection. There is no evidence of sale prices at which sales were made to a significant number of buyers constituting the general public. Therefore, the Contracting Officer determines this item to be non-commercial, thus FAR 15 procedures will be utilized.

9. Additional facts supporting other than full and open competition are:

[X] Based upon the attached technical certification, technical data is not available and cannot be developed to permit full and open competition. The data presently available reflects the minimum needs of the Government.

10. A listing of sources, if any, indicating an interest in the acquisition is: McClarin Plastics LLC. (0C8U3) and JGILS LLC (1N8T8) indicated interest in the acquisition.

11. The following actions are being taken to identify additional sources:

[X] Solicitation contains DLA Procurement Note, L04 Offers for Part Numbered Items

[X] Solicitation contains DLA Procurement Note, M06 Evaluation of Offers for Part Numbered Items

12. DFARS PGI (Procedures, Guidance and Information) 206.303 and 206.304 state that justifications citing the authority at FAR 6.302-1 to permit the use of other than full and open competition shall include a copy of a previous justification.

- Found and attached prior J&A from Sol SPE7L123R0049, PR 7003144331.

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I hereby certify that the information contained in this justification is accurate and complete to the best of my knowledge and belief. If not exceeding \$750,000, this signature serves as the approval.

TUBBS.JOHN.D.1076 Digitally signed by
026684 TUBBS.JOHN.D.1076026684
Date: 2024.12.31 10:52:30 -05'00'

Contracting Officer

Date

APPROVAL/CERTIFICATION

I have reviewed and approve this justification:

WIEBUSCH.JAMIE.1 Digitally signed by
251897324 WIEBUSCH.JAMIE.1251897324
Date: 2025.01.03 09:25:56 -05'00'

Competition Advocate Signature

Date

APPROVAL REQUIREMENTS

☐ Up to \$750,000 Contracting Officer

☒ Over \$750,000 to \$15,000,000 Competition Advocate

Attachment(s):

Attachment 1: Tech Certification Memo

Attachment 1: Prior J&A